

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 23, 2018

Honorable G. Johnson
Judge of the Superior Court
County of Tulare
221 S. Mooney Boulevard, Room 303
Visalia, CA 93291

Re: Wheeler, Jordan Marshal
CDC No.: G40697
Case No.: VCF290999A
Date of Sentence: 03/06/2015

Dear Honorable G. Johnson:

The purpose of this letter is to provide the court with authority to resentence Jordan Marshal Wheeler pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Wheeler was sentenced in 2015, and was convicted of section 245, subdivision (A)(2), Assault with firearm. The trial court sentenced inmate Wheeler on 03/06/2015. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Wheeler's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Wheeler's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Bret D. Hillman, Tulare County Presiding Judge
Tulare District Attorney
Public Defender

512612

640697

ABSTRACT OF JUDGMENT - DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: Tulare-Porterville Division							
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Jordan Marshal Wheeler		DOB: 9-12-66 8-31-98				PCF002287 -A	
A/K/A:						VCF290999A -B	
CII NO.: A24061731						VCF294664 -C	
BOOKING NO.: 77-99203		☐ NOT PRESENT		-D			
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT			☐ AMENDED ABSTRACT				
DATE OF HEARING 3-6-15		DEPT. NO. 17		JUDGE G. Johnson			
CLERK S. Cabrera Avila		REPORTER S. Felix		PROBATION NO. OR PROBATION OFFICER 502126 ☐ IMMEDIATE SENTENCING			
COUNSEL FOR PEOPLE M. Niayish		COUNSEL FOR DEFENDANT J. Ryan		☒ APPTD.			

1. Defendant was convicted of the commission of the following felonies:

- ☒ Additional counts are listed on attachment
1 (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	1/3 CONSECUTIVE	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (date to term)	654 STAY	SERIOUS FELONY	VIOLENT FELONY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA									YRS.	MON.
1A	PC	192	Voluntary Manslaughter	2013	1-23-15			X	U						X		11	0
2A	PC	246	Shooting Occupied Vehicle	2013	1-23-15			X	M		X				X		1	8
3A	PC	29800(A)(1)	Felon in poss of firearm	2013	1-23-15			X	M		X						0	8
1B	PC	245(A)(2)	Assault with firearm	2013	1-23-15			X	M		X				X		1	0
2B	PC	246.3(a)	Discharge firearm w/neglig	2013	1-23-15			X	M		X				X		0	8
3B	PC	29800(A)(1)	Felon in poss of firearm	2013	1-23-15			X	M		X						0	8

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED "S" or "PS"	ENHANCEMENT	TIME IMPOSED "S" or "PS"	ENHANCEMENT	TIME IMPOSED "S" or "PS"	TOTAL
1A	12022.5(a)	10 years	186.22(b)(1)(c)	10 years			20 0
2A	12022.7(a)	1 year	12022.5(a)	3 yrs 4 mon	186.22(b)(1)(c)	1 yr 8 mon	6 0
3A	186.22(b)(1)(A)	1 yr 4 mon					1 4
2B	186.22(b)(1)(c)	1 yr 8 mon					1 8
1B	12022.5(a)	3 yr 4 mon	12022.7(a)	1	186.22(b)(1)(c)	1 yr 8 mon	6 0
3B	186.22(b)(1)(a)	1 yr					1 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed "S" for stayed, "PS" for punishment struck. DO NOT LIST ANY ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED "S" or "PS"	ENHANCEMENT	TIME IMPOSED "S" or "PS"	ENHANCEMENT	TIME IMPOSED "S" or "PS"	TOTAL
PC667.5	1	PC667.5	1			2 0

4. Defendant sentenced ☐ to county jail per PC 1170(h)(1) or (2)

- ☐ to prison per 1170(a), 1170.1(a) or 1170(h)(3) due to ☒ current or prior serious or violent felony ☐ PC290 or ☐ PC 186.11 enhancement
☐ per PC 667(b)(i) or PC 1170.12 (strike prior)
☐ per PC 1170(a)(3). Preconfinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: 1 8

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 55 4

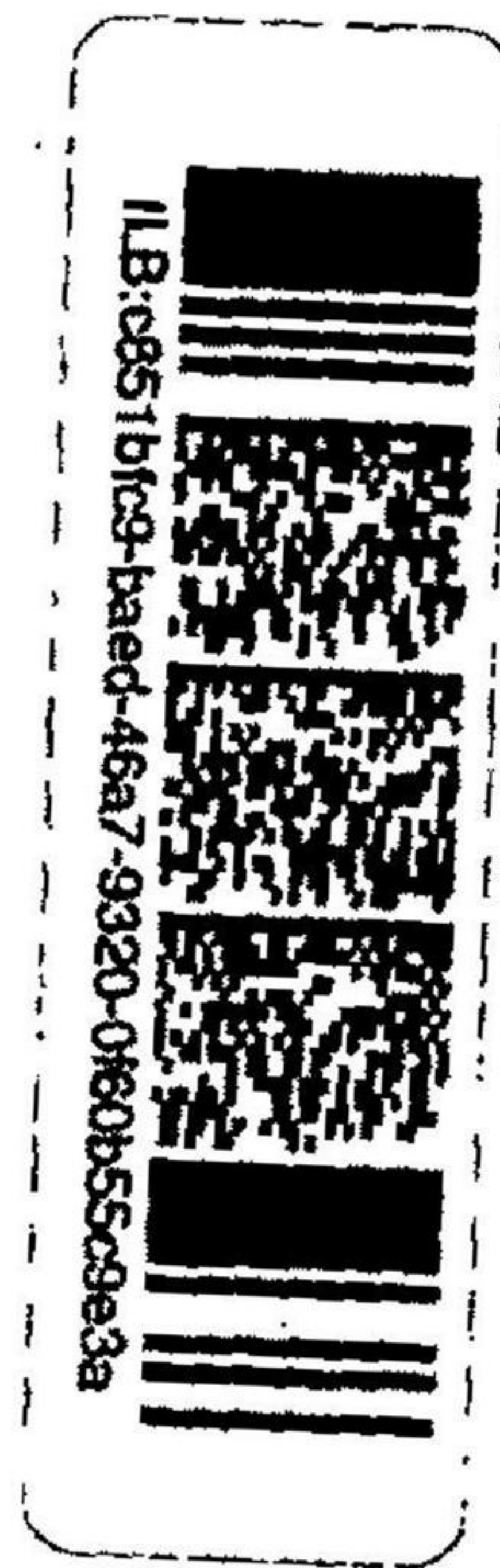
Attachments may be used but must be referred to in this document.

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NORTH KERN STATE PRISON

2015 MAR 24 AM 10:20

RECEIVING AND RELEASE



PEOPLE OF THE STATE OF CALIFORNIA vs.

DEFENDANT: Jordan Marshal Wheeler

PCF292287

-A

VCF290999A

-B

VCF294664

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$9000 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment): \$9000 per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

Case B: \$10000 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment): \$10000 per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

Case C: \$300 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment): \$300 per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment): \$ per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ Amount to be determined to victim(s)* Restitution Fund
 Case B: \$ Amount to be determined to victim(s)* Restitution Fund
 Case C: \$ Amount to be determined to victim(s)* Restitution Fund
 Case D: \$ Amount to be determined to victim(s)* Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 11, below. ☒ * Victim names(s) in probation officer's report-REMAIN OPEN

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Operations Assessment: \$320 per PC 1465.8. e. Conviction Assessment: \$240 per GC 70373. f. Other: \$ per (specify):

10. TESTING a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify):

11. REGISTRATION REQUIREMENT: ☒ per (specify code section): PC186.30

12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: Suspended: Served forthwith:

13. Other orders (specify): Do not possess firearms.

16. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	524	456	68 ☐ 2933 ☒ 2933.1 ☐ 4019
B	3	3	0 ☐ 2933 ☒ 2933.1 ☐ 4019
C	0	0	0 ☐ 2933 ☐ 2933.1 ☐ 4019
D			☐ 2933 ☐ 2933.1 ☐ 4019
Date Sentence Pronounced		Time served in State Institution	
3/6/15		DMH	CDC CRC
		☐	☐ ☐

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per 1203c.
 Defendant's race/national origin:

15. EXECUTION OF SENTENCING IMPOSED

- a. ☐ at initial sentencing hearing
 b. ☐ at resentencing per decision on appeal
 c. ☐ after revocation of probation
 d. ☐ at resentencing per recall of commitment (PC 1170(d).)
 e. ☐ other (specify):

17. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
 To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation
☐ county jail ☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

MARCH 9, 2015

CR-290-A

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PAL OR
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PRINCIPAL OR
CONSECUTIVE
TIME IMPOSED

TOTAL

- horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

TOTAL

- horizontally. Enter time imposed, "S" for stayed, "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

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